



**Template only.** This document was drafted as a starting point and has not been reviewed by a Montana attorney. Before using with any client, have a Montana-licensed lawyer review it for compliance with state law. Liability waivers in particular must meet specific requirements to be enforceable. Do not rely on this template as legal advice.

## Team Training Contract

For Small Group Sports, Team, Large Team, and Squad Training contracts.

Team / Organization name

Authorized representative

Title / role

Email

Phone

### 1. PARTIES

This Team Training Contract (the "**Contract**") is between **Missoula High Performance, LLC ("MHP")** and the team or organization identified above (the "**Team**"), acting through its authorized representative.

### 2. SERVICES & SCOPE

Tier (circle one)

Athletes (estimated)

Small Group · Team · Large Team · Squad

Sessions per week

Session length

Location

1x · 2x · 3x

60 / 70 / 80 / 90 min

MHP facility

MHP will provide sport-specific strength and conditioning programming, on-floor coaching, periodic assessments, and (for Team tier and above) MHP App access for each athlete.

### 3. TERM

Term type (circle one)

Start date

End date

8-week off-season · 12-week off-season · Annual · Custom

### 4. FEES & PAYMENT

Monthly fee

Discount applied

One-time intake fee

\$

% (off-season · multi-group · annual)

\$\_\_\_\_\_ (Large Team: \$300 / Squad: \$500)

Total Contract value

Billing schedule

\$

Monthly · Upfront

Best applicable discount applies. Discounts do not stack. Late payments (15+ days overdue) accrue 1.5% monthly interest and may result in suspension of services.

### 5. ATHLETE ROSTER & GROUP SIZE

The Team will provide MHP with a roster of participating athletes at the start of the Contract. The fee is fixed for the agreed tier; adding athletes beyond the upper bound of the tier requires moving to the next tier (with adjusted pricing). Removing athletes mid-Contract does not reduce the fee.

### 6. LIABILITY WAIVERS

Each athlete (or parent/guardian for athletes under 18) must execute MHP's individual Liability Waiver before their first session. The Team representative will coordinate collection of signed Waivers; MHP will not permit participation without a Waiver on file.

7. CANCELLATION & TERMINATION

**Cancellation by Team:** The Team may cancel this Contract with 30 days' written notice. Fees paid for the current and prior service periods are non-refundable. Cancellation effective at the end of the notice period.

**Termination by MHP:** MHP may terminate for non-payment (15+ days late), repeated safety issues, or material breach, with 15 days' written notice and opportunity to cure.

**Pause / freeze:** Force majeure or mutually agreed pause may extend the Contract end date by the equivalent number of weeks, with no refund.

8. FORCE MAJEURE

Neither party is liable for failure to perform due to events beyond reasonable control (natural disaster, government order, facility closure, pandemic). The affected party must give prompt written notice and the parties will negotiate in good faith to extend or modify the Contract.

9. COACH SUBSTITUTION & CONTINUITY

MHP may use qualified substitute coaches when the lead coach is unavailable. MHP guarantees continuity of programming and methodology across substitutions. Extended absences (3+ consecutive sessions) entitle the Team to a session-by-session credit or pro-rated refund at the Team's option.

10. INSURANCE & INDEMNIFICATION

MHP carries general and professional liability insurance and will provide a certificate on request. The Team represents that participating athletes are covered by health insurance (or that the Team or guardians are financially responsible for medical care).

Each party agrees to indemnify the other for claims arising from its own negligence or willful misconduct.

11. CONFIDENTIALITY

MHP will keep all athlete health, performance, and personal information confidential. Aggregate, anonymized performance data may be used by MHP for programming research and case studies.

12. GOVERNING LAW & DISPUTES

This Contract is governed by the laws of the State of Montana. The parties agree to attempt good-faith mediation in Missoula County before pursuing litigation. Any litigation shall be filed in the courts of Missoula County, Montana.

13. ENTIRE CONTRACT

This Contract, together with all individual athlete Liability Waivers, constitutes the entire understanding between the parties. Modifications must be in writing and signed by both parties.

|                                          |                     |
|------------------------------------------|---------------------|
| TEAM / ORGANIZATION AUTHORIZED SIGNATURE | MHP REPRESENTATIVE  |
| <div></div>                              | <div></div>         |
| Printed Name, Title & Date               | Printed Name & Date |